



Bart Lorang <lorangb@gmail.com>

RE: [EXTERNAL] Ask a Planner - Bart Lorang - - 5134 Ute Highway

L'Orange, Pete <plorange@bouldercounty.org>
To: Bart Lorang <lorangb@gmail.com>

Tue, Aug 23, 2022 at 11:41 AM

I'm happy to try and answer your questions. Please note, these answers are only related to the Boulder County Land Use Code side of things, and do not deal with any state requirements.

It is the determination of County Staff, including the Community Planning & Permitting Director, that the open mining use and the cement plant use at the Lyons Quarry site are consider legal, nonconforming under the County Land Use Code.

The cement plant was allowed by right in the General Industrial district when the plant was built in 1967; it became legal non-conforming in 1994, when it was established that industrial uses in the General Industrial district required Special Use review. The mining operations at Lyons quarry, also allowed by right in the General Industrial district when the mining use was established in 1977, became legal non-conforming in 1978 when the Special Use review requirement was added for open mining in the General Industrial district.

As the cement plant was allowed by right in 1967, there are no specific requirements on the plant's operations in terms of sourcing of material. Indeed, the plant was established well before the open mining at Lyons Quarry. The building permit for the plant lists is as a "Modern Cement Plant." The building permit does include reference to a "Kiln Dust Collector" and "Kiln Dust Bin," but the building permit does not speak to things like disposal of any materials. Since the open mining at the Lyons Quarry was allowed by right in 1977, there are no local reclamation requirements on that.

Article 4-1000 of the Boulder County Land Use Code address nonconforming structures and uses. This article of the Code states that "a nonconforming use may be continued and normal or routine maintenance of a structure containing a nonconforming use shall be permitted." (4-1003.B) So, long-story-short, yes, the Lyons Quarry and cement plant are considered legal nonconforming under the Land Use Code and they can continue to operate as they are.

Pete L'Orange | Planner II

Boulder County Community Planning & Permitting

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New: Boulder County has a new website: BoulderCounty.gov! Bookmark it today. Email addresses will transition at a later date.

Nuevo: ¡El condado de Boulder tiene un nuevo sitio web: BoulderCounty.gov! Márcalo hoy. Los correos electrónicos harán la transición en una fecha posterior.

-----Original Message-----

From: LU Land Use Planner <planner@bouldercounty.org>

Sent: Monday, August 22, 2022 7:46 AM

To: L'Orange, Pete <plorange@bouldercounty.org>

Subject: FW: [EXTERNAL] Ask a Planner - Bart Lorang - - 5134 Ute Highway

@L'Orange, Pete

Fyi

bbg

-----Original Message-----

From: Ask A Planner <no-reply@wufoo.com>

Sent: Saturday, August 20, 2022 5:17 PM

To: LU Land Use Planner <planner@bouldercounty.org>

Subject: [EXTERNAL] Ask a Planner - Bart Lorang - - 5134 Ute Highway

Boulder County Property Address : 5134 Ute Highway

Name: Bart Lorang

Email Address: lorangb@gmail.com

Phone Number: (303) 717-0414

Please enter your question or comment: It is my understanding that the cement plant operations and mining activities that occur this property are considered by the owner to be a pre-existing, legal, non-conforming use under the Boulder County Land Use Code. If that is accurate, I have a few questions:

1. What is the exact date that the aforementioned operations on this property became considered a legal non-conforming use under the Land Use Code? Was it upon the adoption of the Boulder County Land Use Code in 1994?
2. What does the nonconforming use specifically entail? Does it entail processing of nearby materials from local mines? Production of cement? Storage and disposal of Cement Kiln Dust (CKD)? Reclamation activities of the mined-out pits on this property?
3. Is there any further detail or clarification you can provide on the non-conforming status, that would be very helpful.

Thanks very much,

Bart Lorang

Public record acknowledgement:

I acknowledge that this submission is considered a public record and will be made available by request under the Colorado Open Records Act.